

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/12/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2026-01545785 Luk vs. Johnson	Pending check back later
6	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion to Compel Further Responses to Form Interrogatories (ROA 63), Motion to Compel Further Responses to Special Interrogatories (ROA 66), Motion to Compel Production/Inspection of Documents or Things (ROA 69), and the Plaintiff's Oppositions to Each of the Defendant's Motions (ROA 78, 80 & 82). The Court takes Judicial Notice of the Request to Set Case for Trial (ROA 26), filed 5/8/2026; the Demand for Jury Trial (ROA 35), filed 5/11/2026; the Substitution of Attorney (ROA 32/33), filed 5/11/2026; the Clerk's Certificate of Mailing/Electronic Service (ROA 29); the Clerk's Certificate of Mailing/Electronic Service (ROA 59); and the 5/22/2026 Minute Order. Here, the Plaintiff filed a Request to Court the Case for Court trial on 5/8/2026. On 5/11/2026, Asian Americans Advancing Justice Southern California filed a substitution of attorney for the Defendants and filed a timely demand for a jury trial. On 5/12/2026, the Court Clerk's office mistakenly set the matter for a Court Trial and failed to provide notice to